

According to T.316/13, a European patent attorney is expected to know the EPC provisions concerning the legal remedies available in the event of failure to observe time limits, even if he has never been faced with the problem before, without waiting for the board of appeal to tell him exactly what he needs to do.

(ii) Exceptions to the rule that an error of law or erroneous interpretation cannot be excused

In T.624/96 the board expressed doubts about the nature of the original mistake, which concerned calculation of the time limit for filing the statement of grounds of appeal. This was possibly a "mistake of law" caused by ignorance or misinterpretation of the provisions of the EPC, as in e.g. J.31/89 or T.853/90. The board found that in the circumstances of the case at issue, however, the agent had not made a "mistake of law" of this kind. The agent cited an earlier appeal in which he had represented the same applicant, showing that he indeed had some familiarity with the appeals procedure. He also submitted programmes of training courses, at which he had given talks on European patents and EPO proceedings. It could be therefore be ruled out that a legal error in calculating the period for lodging the statement of grounds of appeal might have arisen from his ignorance of the EPC.

In J.28/92 the Legal Board held that the misinterpretation of a provision of the EPC by a representative was not without basis or unreasonable and considered that there was no basis for penalising the representative for having arrived at a **not unreasonable interpretation** of a rule of the EPC, which subsequently turned out to be wrong. The representative's interpretation of a legal provision of the EPC was not the result of, and did not lead to, a failure to exercise all due care required by the circumstances. In T.493/08 the board shared the view expressed in J.28/92 and stated that there might be exceptions to the rule that an error of law could not be excused, which, however, could be acknowledged only under rigorous criteria.

In J.13/13 the Legal Board confirmed that an error of law could be excused if rigorous criteria were met, namely where there were genuine doubts and differences of opinion as to how a provision was to be interpreted. Such doubts and differences of opinion could be considered legitimate only if, after scrupulous attempts to clarify the matter, including by reference to the boards' case law, the right interpretation remained objectively unclear and the view later found to be erroneous was reasonable.

d) Requesting and acting on information from the EPO

In T.460/95 of 16 July 1996 the representative requested an extension of the time limit, although, in his professional capacity, he should have known that time limits under Art. 108 EPC 1973 could not be extended. The board noted that representatives were expected to be acquainted with the provisions of the EPC regarding time limits, and that the representatives in question had not been as vigilant as the situation demanded. In this specific case, however, the representative had taken the precaution of contacting the Registry of the Boards of Appeal beforehand, and had received information from that body which had led him to take action prejudicial to his interests. The board held that appellants

should not suffer injury merely because they had relied on **information received from the EPO** which later proved to be mistaken or likely to have been misunderstood.

In T 881/98 the appellant's professional representative had written to the Registry of the boards of appeal requesting a two-month extension to a time limit, without giving reasons or indicating that the time limit in question was for submitting the statement of grounds of appeal. He added that if not notified to the contrary he would assume his request was allowed. The board refused the request for re-establishment. The Registry had not fallen short of legitimate expectations, as in this case (in contrast to T 460/95) the appellant had not been misled to his detriment by wrong information from the Registry but had himself made the mistake of thinking that the time limit could be extended.

In T 733/98 the board informed the appellants that the statement setting out the grounds of appeal did not comply with Art. 108, third sentence, EPC 1973. The appellants requested re-establishment in respect of the time limit for filing the statement of grounds, arguing that they had relied on Legal Advice No. 15/84 of the EPO, which had still been in force when they had received the communication under R. 51(4) EPC 1973. The board held that the appellants had misinterpreted the legal advice in question, having failed to realise that the procedure for handling main and auxiliary requests which it described no longer applied once amended R. 51 EPC 1973 entered into force. The board decided that the requirement of all due care required by the circumstances was not met in this case.

In T 744/11 the statement setting out the grounds of appeal was received in electronic form three minutes after expiry of the four-month time limit. The representative argued that his office was based in Cambridge and that, since the clocks in the United Kingdom were one hour behind Central European Time (CET), he had sent the statement of grounds within the time limit. The board could not accept this argument for the simple reason that the relevant time for the purpose of the law was the time at the EPO (i.e. the time at Munich or The Hague) and not the time in the United Kingdom. However, the board considered the appellant's request allowable, in particular because the appellant had shown that the non-observance of the time limit was not caused by lack of due care but rather by a justifiable human error on the part of the representative.

e) Starting work on a case close to the expiry of the time limit

In J 16/92 the Legal Board made it clear that anyone getting himself into a situation where he could not be sure of being able to complete the omitted act ran the risk of his request for further processing being ruled inadmissible for failure to complete the omitted act in good time. In the case in hand the representative had not started working on the file until four days before expiry of the time limit for further processing and hence had discovered too late that he was unable to find the first communication to which he was to respond. See also J 7/12 (where a payment order was transmitted late in the afternoon of the last day of the grace period for paying a renewal fee plus additional fee).

f) Designation of receiving offices

In J 1/03 the Legal Board emphasised the paramount importance of the designation of receiving Offices and the difficulty or even impossibility, in many cases, of correcting wrong or missing designations. Consequently, the benchmark for what "all due care" meant in those cases, was very high. Likewise the check of the content of the international application on the basis of the "Notification of Receipt of Record Copy" issued by the International Bureau had to be made very carefully.

g) Abandonment of application

In T 1022/14 the board observed that abandonment of an application was a final action with serious consequences if misapplied. Thus for a decision to close a file and to abandon an application the utmost care had to be taken to establish whether the client had without any doubt issued instructions to that effect. The decision to abandon an application had to be taken by the representative himself, on the basis of his own observations and knowledge. This responsibility could not be delegated to employees, as decisions of this kind required the special knowledge of the representative for which he had to assume personal responsibility as a professional.

5.5.3 Due care on the part of a non-authorised representative

In determining whether all due care has been taken, the acts of all those persons the appellant has asked to act on its behalf must be considered, which also applies to non-authorised representatives instructed by the appellant (T 2274/11 with reference to J 4/07; see also J 5/80).

In J 25/96 the Legal Board held that where a US applicant availed himself of the services of a US patent attorney for matters which in relation to the EPO fell within the applicant's responsibility, the **US patent attorney** had to be regarded as the agent of the applicant. Thus, to meet the "all due care" requirement, the US patent attorney had to show he had taken the due care required of an applicant (see also J 3/88, T 1401/05 of 20 September 2006).

In J 4/07 the Legal Board pointed out that a non-European representative can be held responsible for meeting the obligations of any representative whose duty it is to care for his client's interests, irrespective of whether such representative is entitled to represent before the EPO or any other patent office (see J 25/96, J 5/18). The monitoring of specific time limits that were set expressly does not depend on knowledge of EPC law. Thus a non-European representative must also establish a reliable monitoring system for such time limits. Furthermore, any representative, whether European or non-European, moving from one law firm to another must take provisions upon entry in that firm that those filed that he carries over are integrated into a time limit monitoring system.

In J 3/08 the Legal Board held that according to the established jurisprudence, if an agent was appointed, the agent had also to observe all due care and if he did not act accordingly this was imputed to the applicant. In the case at issue, it was clear that the agent, by not

acting as instructed, had not properly handled the case. According to the Legal Board, if **fraud by an agent** were to be accepted as a reason for re-establishment of rights, by derogation from the general principle that an agent's behaviour was imputed to the applicant, the evidence presented must be so conclusive as to convince the board that a fraud took place as opposed to just unprofessional behaviour.

In T 742/11 the board held that the actions of an agent, who acted as an intermediary between the appellant and the professional representative, must be imputed to the party he is acting for, and the same level of care is expected from the agent as from a professional representative, or at least as from the party itself. Indeed, requiring a certain level of care from a professional representative and a party using his services would become utterly pointless if an intermediary acting between the party and the professional representative were not required to show the same level of care.

In T 1954/13 after the applicant (appellant) issued the US attorney with an order to "stop work", communication between the appellant and the US attorney was "reduced to a minimum". In the absence of evidence that the appellant had explicitly instructed the US attorney not to pass on any information about the status of the application to the appellant, the board could not establish that, by remaining inactive with respect to the application in suit, albeit having received relevant information from the European representative, the US attorney had complied with the requirement of "all due care". Although the appellant asserted an email had been sent by the US attorney to inform the applicant about the final deadline for filing an appeal shortly before the date both the US attorney and European representative considered to be the last date for filing an appeal, the mere sending of a single e-mail to the applicant without seeking confirmation of receipt or a follow-up enquiry, did not, in the board's view, meet the standard of all due care required by the circumstances (see also T 2274/11, J 15/14, J 19/04).

5.5.4 Due care in dealing with assistants

a) Introduction

According to the case law of the boards of appeal, where an assistant has been entrusted with carrying out routine tasks, such as typing dictated documents, posting letters and parcels and noting time limits, the same rigorous standard of care is not expected as is demanded of an applicant or his professional representative (J 5/80, OJ 1981, 343; see also J 33/90, J 26/92, T 43/96 of 5 July 1996, T 221/04 of 5 May 2004, T 1465/07, T 1663/12).

J 5/80 (OJ 1981, 343) is the key ruling in this regard. It established that a request for re-establishment of rights can be acceded to in the event of a culpable error on the part of the assistant, if the professional representative is able to show that he has **chosen** for the work a suitable person **properly instructed in the tasks to be performed**, and that he has himself exercised reasonable supervision over the work (see also T 191/82, OJ 1985, 189; T 105/85; T 110/85 of 10 September 1987; T 11/87 of 14 April 1988; T 176/91 of 8 April 1991; T 949/94 of 24 March 1995; T 221/04 of 5 May 2004; T 1149/11; T 1171/13).

The Legal Board further stated in J.5/80 that a representative cannot relieve himself of responsibility for carrying out tasks which, by reason of his qualification, fall upon him personally, such as, for example, the interpretation of laws and treaties. If a representative delegates such tasks to an employee and if the latter makes an error in the course of that work which results in the failure to observe a time limit, the representative cannot establish that he took all due care required by the circumstances (see also J.33/90 and T.715/91).

More recent decisions stress that responsibility in every respect passes to the representative as soon as he is presented with the file for processing, and that to that extent he is not justified in relying on an assistant's calculation of a time limit (see in this chapter III.E.5.5.4 e) "Ultimate responsibility of the representative"). For a case where an unrepresented individual applicant entrusted a third person with the payment of renewal fees and other administrative tasks, see T.555/08.

Regarding the **burden of proof** in the form of an adequately detailed statement in connection with the duty of care in the selection, instruction and supervision of assistants, see J.18/98.

b) Selection, instruction and supervision

It is incumbent upon the representative to choose for the work a suitable person, properly instructed in the tasks to be performed, and to exercise reasonable supervision over the work (J.5/80, OJ 1981, 343; J.16/82, OJ 1983, 262; J.26/92; T.2016/16). An "assistant" within the meaning of J.5/80 (OJ EPO 1981, 343) includes a **substitute replacing an assistant** who is on leave, ill or absent for some other reason. The same standard of care must be exercised as regards the choice, instruction and supervision of the substitute as of the assistant himself (J.16/82, OJ 1983, 262). New assistants must be supervised on a regular basis for a period of at least some months (see J.3/88, T.715/91).

The case law cited above applies equally to a **patent attorney residing in the USA** (or his assistants) if he acts in collaboration with the duly appointed professional representative. In J.3/88 the US patent attorney of a "non-resident" applicant acted in collaboration with the duly appointed professional representative. The "docket clerks" (assistants of the US patent attorney) were entrusted with the performance of routine tasks such as noting time limits and checking due dates. The Legal Board stated that in order to be able to carry out these admittedly rather simple tasks properly, they needed nevertheless some **basic knowledge**. The Legal Board concluded that, although no special qualifications were required, it was fairly impossible for a docket clerk to perform these routine tasks satisfactorily without having previously been given appropriate instruction and being supervised closely until he was familiar with the job. A reasonable **supervision** of the activity of a newly engaged docket clerk implied that his work be periodically checked. In order to be effective and avoid culpable errors, these periodic checks should be performed systematically, at least during an initial training period of several months.